



Superior Court

Instructions for Filing a Motion to Expunge or Seal Record - Felony

1. Fill in the required fields in the Motion to Expunge or Seal Record – The Defendant’s name, case number, bureau of criminal identification number, the count(s), charge(s), and disposition(s) of the case, and the name of the police department that charged the case. Also, indicate whether you are moving to seal or expunge your criminal records.
2. The Clerk’s Office will fill in the hearing date for the motion. The date will be at least ten (10) days from the date the motion is filed, because you are required under the law to provide at least ten (10) days’ notice of the hearing to the Office of the Attorney General and the police department that charged the case.
3. Certify that you have provided notice to the Office of the Attorney General and the law enforcement agency that charged the case and then sign the motion.
4. In the Affidavit in Support of the Motion to Expunge or Seal Record, identify the part applicable to your motion.
 - Part One: If you were acquitted (found not guilty), the case was dismissed, a no true bill was returned, or no information was filed.
 - Part Two: If you were convicted of a single felony offense and have not been previously convicted of or placed on probation for a felony or a misdemeanor.
 - Part Three: If you pled guilty or nolo contendere and your sentence was deferred by the court pursuant to a written deferral agreement.
 - Part Four: If the offense has been decriminalized subsequent to the date of your conviction.
5. Put a check mark in the box for each statement that is true under the Part applicable to your motion (see above).
6. Sign the Affidavit in Support of the Motion to Expunge or Seal Record on the line marked “Signature of the Defendant” in the presence of a notary public or clerk. If the Motion to Expunge or Seal Record is being filed by an attorney for a decriminalized offense, an Affidavit in Support of the Motion to Expunge or Seal Record is not required.
7. Bring the Order for Expungement or Sealing of Record to the hearing.
8. If your motion is granted, all financial obligations owed (fines, fees, costs, restitution, and assessments) must be paid in full to complete the expungement process. Upon all conditions being satisfied, the clerk’s office will prepare three (3) certified copies of the order. One (1) copy is for your records, one (1) copy is for the Office of the Attorney General’s Bureau of Criminal Identification Unit (BCI), and one (1) copy is for the police department that charged the case. You are responsible for delivering the copies to these agencies.



Superior Court

Motion to Expunge or Seal Record - Felony

State of Rhode Island v. Defendant Maria-Alejandra O'Shaughnessy-Whitfield	Case Number	Date of Birth 1972-12-31
	Bureau of Criminal Identification Number	
☐ Murray Judicial Complex Newport County 45 Washington Square Newport, Rhode Island 02840-2913	☐ Noel Judicial Complex Kent County 222 Quaker Lane Warwick, Rhode Island 02886-0107	
☐ McGrath Judicial Complex Washington County 4800 Tower Hill Road Wakefield, Rhode Island 02879-2239	☐ Licht Judicial Complex Providence/Bristol County 250 Benefit Street Providence, Rhode Island 02903-2719	

The Defendant requests that the above-referenced case containing the following charge(s) be
☒ **expunged** ☐ **sealed**.

1. Count(s): _____ _____ _____ _____	2. Charge(s): _____ _____ _____ _____	3. Disposition(s): _____ _____ _____ _____
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The Defendant respectfully moves this honorable court that:

- ☐ Pursuant to G.L. 1956 § 12-1-12, any fingerprints, photographs, physical measurements, or other record of identification taken by the Office of the Attorney General or any other authorized law enforcement agency shall be **destroyed**, all records of the Bureau of Criminal Identification (BCI) shall be **sealed**, and all court records shall be **sealed** in accordance with G.L. 1956 § 12-1-12.1.
- ☒ All records and records of conviction relating to the conviction of the above-referenced case be **expunged** and all index and other references to the case be removed from public inspection pursuant to G.L. 1956 § 12-1.3-3(c) or (e).

An Affidavit is submitted in support of this motion (except for decriminalized offenses when the motion is filed by an attorney). This motion is called for a hearing on _____ at _____ in courtroom _____ at the court location listed above.

I hereby certify that pursuant to G.L. 1956 § 12-1-12.1(b)(1) or § 12-1.3-3(a), on _____, the Office of the Attorney General and the _____ Police Department, which originally brought this charge, have been notified of this motion and the court date is at least ten (10) days prior to the hearing date.

/s/ _____ Attorney for the Defendant or the Defendant	Rhode Island Bar Number Date
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Superior Court

Affidavit in Support of Motion to Expunge or Seal Record - Felony

State of Rhode Island v. Defendant Maria-Alejandra O'Shaughnessy-Whitfield	Case Number	Date of Birth 1972-12-31
	Bureau of Criminal Identification Number	

I, the undersigned, do hereby, under oath, make this affidavit in support of my Motion to Expunge or Seal Record:

Part One: ☐ That I was charged with the crime(s) listed in Box 2 of the motion.
Acquittals, ☐ That I was acquitted or otherwise exonerated of this offense(s).
Dismissals, ☐ That the case was dismissed against me.
No True Bill, ☐ That a no true bill was returned.
No Information ☐ That no information was filed.

Part Two: ☐ That I was charged with the crime listed in Box 2 of the motion.
Single Conviction ☐ That I received the disposition listed in Box 3 of the motion.
☐ That the disposition listed in Box 3 of this motion is not a conviction for a crime of violence.
☐ That I was convicted of a single misdemeanor offense, and I have not been previously convicted of or placed on probation for a felony or a misdemeanor.
☐ That more than ten (10) years have passed from the date of the completion of my last sentence.
☐ That in the ten (10) years preceding the filing of this motion, I have not been convicted of nor arrested for any felony or misdemeanor.
☐ That there are no criminal proceedings pending against me, and I have exhibited good moral character.
☐ That I have satisfied in full any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges.

Part Three: ☐ That I was charged with the crime listed in Box 2 of the motion.
Deferred Sentence ☐ That I pled guilty or nolo contendere to the crime listed in Box 2 of this motion.
☐ That my sentence for the crime listed in Box 2 of this motion was deferred by the court pursuant to a written deferral agreement filed with the clerk of court.
☐ That I have completed my deferment sentence.
☐ That I have complied with all the terms and conditions of my deferral agreement, including, but not limited to, the payment of any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges.
☐ That I have not been convicted of a crime of violence.
☐ That there are no criminal proceedings pending against me, and I have exhibited good moral character.

Part
Four:
***Decriminalized
Offense***

- ☐ That I was charged with the crime listed in Box 2 of the motion.
- ☐ That I received the disposition listed in Box 3 of the motion.
- ☐ That all conditions of the original criminal sentence have been completed.
- ☐ That I have satisfied in full any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges.
- ☐ That the offense has been decriminalized subsequent to the date of my conviction.

Signature of the Defendant

Date: _____

State of _____

County of _____

On this _____ day of _____, 20____, before me, the undersigned notary public, personally appeared _____

☐ personally known to me or ☐ proved to me through satisfactory evidence of identification, which was _____, to be the person who signed above in my presence, and who swore or affirmed to me that the contents of the document are truthful to the best of his or her knowledge.

Notary Public: _____

My commission expires: _____

Notary identification number: _____

ORDER FOR EXPUNGEMENT OR SEALING OF RECORD
(PROPOSED - brought to the hearing by the moving party)

THIS IS NOT A FORM PUBLISHED BY THE RHODE ISLAND JUDICIARY. Instruction 7 on page 1 of the court's own motion says "Bring the Order for Expungement or Sealing of Record to the hearing", and Rhode Island publishes no template for that order. This page is the moving party's OWN proposed order. The Court may sign it, change it, refuse it, or enter an order of its own instead.

SUPERIOR COURT OF THE STATE OF RHODE ISLAND

STATE OF RHODE ISLAND

v.

Maria-Alejandra O'Shaughnessy-Whitfield

Defendant

County and judicial complex:

Case Number:

Date of Birth: 1972-12-31

Bureau of Criminal Identification Number:

THE MOTION THIS ORDER IS PROPOSED ON

This order is proposed on the Defendant's Motion to Expunge or Seal Record filed in the above-referenced case under R.I. Gen. Laws Sec. 12-19-19 and Sec. 12-1.3-2(e), and on the Affidavit in Support of that Motion, Part Three: Deferred Sentence.

The counts, charges and dispositions the motion asks to expunge, as they are listed in Boxes 1, 2 and 3 of the motion. Copy them from the motion; they are not filled in here because the platform has not seen the court record they come from.

1. Count: Charge: Disposition:
2. Count: Charge: Disposition:
3. Count: Charge: Disposition:
4. Count: Charge: Disposition:

Date of the hearing on the motion, as the Clerk's Office set it:

Composed by LegalEase for Maria-Alejandra O'Shaughnessy-Whitfield, as the moving party's own proposed order. It is not an official Rhode Island form, and no part of it is a finding, a grant, a denial, a signature, an entry, a certification or a seal.

Route: obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-1-bci-and-docket ;
obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-2-court-motion-and-affidavit ;
obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-3-notice-hearing-and-certified-copies

.....

EVERYTHING BELOW THIS LINE IS THE COURT'S. It is left blank on purpose. No finding, no grant, no denial, no condition, no signature, no date of entry, no certification and no seal is written here by the moving party or by LegalEase.

The Court's findings:

.....
.....
.....

[] The motion is GRANTED. [] The motion is DENIED.

If the motion is granted, the Court orders the relief it marks below:

[] that all records and records of conviction relating to the conviction of the above-referenced case be expunged and all index and other references to the case be removed from public inspection pursuant to G.L. 1956 Sec. 12-1.3-3(c) or (e);

[] other relief the Court orders:

Any further terms or conditions the Court sets:

.....
.....

Entered as an order of the Court:

..... Date of entry:

Justice / Judge

Certification or attestation by the Clerk:

NOTICE TO THE OFFICE OF THE ATTORNEY GENERAL AND THE CHARGING POLICE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

This page is guidance. It is not a filing and there is nothing here to hand to a clerk.

WHO MUST BE TOLD, AND WHEN.

The motion's own certification line says that, under G.L. 1956 Sec. 12-1-12.1(b)(1) or Sec. 12-1.3-3(a), the Office of the Attorney General AND the police department that originally brought the charge have been notified of the motion, and that the court date is at least ten (10) days after they were notified.

THE ORDER OF EVENTS MATTERS, AND IT IS NOT THE ORDER THE PAGE READS IN.

1. You file the motion. 2. The Clerk's Office sets the hearing date, at least ten days out - instruction 2 on page 1 says the Clerk's Office fills that date in, not you. 3. You give notice to the Office of the Attorney General and to the police that brought the charge. 4. Only then do you complete the certification line: the date you gave notice, and the name of that police force.

Nothing on that certification line is filled in for you. A certification that notice has been given, signed and dated before notice was actually given, is a false statement to a court.

NO ADDRESS IS PRINTED HERE. The platform holds no service address for the Office of the Attorney General and none for any Rhode Island police department, and it does not guess one. Ask the clerk of the Superior Court division where you file how that division expects notice to be given and to whom, and get the addresses from the clerk or from the offices themselves.

WHAT THE COMMITTED RECORD SAYS ABOUT SERVICE.

Serve the Attorney General and the charging police department at least ten days before the hearing. After a grant, the petitioner delivers certified copies of the order to the Attorney General's BCI unit and the charging police department.

WHAT THE COMMITTED RECORD SAYS ABOUT THE HEARING.

Notice must be given to the Rhode Island Department of Attorney General and to the police department that brought the charge, at least ten days before the hearing. A hearing is required. The court may grant if it finds no felony or misdemeanor arrest or conviction during the lookback, no pending criminal proceeding, financial obligations satisfied or waived or reduced, good moral character, rehabilitation to the court's satisfaction, and that expungement is consistent with the public interest.

Two of the findings in that sentence - good moral character, and rehabilitation to the court's satisfaction - are the court's to make. They are not facts LegalEase can supply and nothing in this packet asserts them.

Route: obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-1-bci-and-docket ;

obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-2-court-motion-and-affidavit ;

obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-3-notice-hearing-and-certified-copies

FILING INSTRUCTIONS

Motion to Expunge Records of a Completed Deferred Sentence (R.I. Gen. Laws Secs. 12-19-19, 12-1.3-2(e))

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT IS IN THIS PACKET.

- ri_deferred_sentence-primary-filing-1: the state's own motion, affidavit and filing instructions, as published, with your name and date of birth written into both captions and every case fact left for you
- ri_deferred_sentence-proposed-order-2: the proposed order the court's own instruction 7 tells you to bring to the hearing. Rhode Island publishes no template for it, so it is composed here; it says on its face that it is not an official Rhode Island form, and every line that is the court's is blank
- ri_deferred_sentence-notice-package-3: who must be notified, when, in what order, and why the certification line on the motion is completed only after notice has actually been given
- ri_deferred_sentence-filing-instructions-4: where it goes, which Part of the affidavit is yours, what the record says about cost, what to get first, and where self-help ends
- ri_deferred_sentence-certified-copy-delivery-checklist-5: the three certified copies the clerk prepares after a grant, and the two you must deliver yourself

THE ROUTE. Clear a record after completing a deferred sentence. Motion to Expunge Records of a Completed Deferred Sentence (R.I. Gen. Laws Secs. 12-19-19, 12-1.3-2(e)). Authority: R.I. Gen. Laws Sec. 12-19-19; R.I. Gen. Laws Sec. 12-1.3-2(e).

A person who received a deferred sentence may move for expungement after completion of the deferred sentence. If the court finds after a hearing that the person complied with all terms of the deferral agreement, including payment of fines, fees, costs, assessments and restitution, the person becomes immediately eligible for consideration for expungement. There is no waiting period beyond completion. The court must also find no pending criminal proceedings and good moral character, and no person convicted of a crime of violence may have deferred-sentence records expunged. A deferred sentence is not an automatic expungement: the court process and the hearing are still required.

WHERE IT GOES. The court where the conviction occurred. Rhode Island has no county layer for this purpose; the forms are court-specific rather than local, which makes venue simpler than most states. File the correct court's Motion to Expunge or Seal Record and Affidavit, with the proposed order, with the clerk of the court where the conviction occurred. The clerk fills in the hearing date.

Mark the one judicial complex on the motion where your case was heard. The Superior Court form lists four; the platform has not seen your docket and does not know which one is yours.

THE AFFIDAVIT, AND THE ONE PART THAT IS YOURS.

Page 1 of the court's form, instruction 4, tells you to identify the Part of the affidavit applicable to your motion. For this route that is Part Three: Deferred Sentence, which applies where the person pled guilty or nolo contendere and the sentence was deferred under a written deferral agreement.

Instruction 5 then says: "Put a check mark in the box for each statement that is true under the Part applicable to your motion." NOT ONE OF THOSE BOXES IS MARKED FOR YOU, in that Part or in any other. Each one is a statement you swear to under oath about your own record, your own unpaid balances, whether any case is pending against you, and your own character. LegalEase holds no Rhode Island criminal history record and no court docket for anyone, and it will not swear for you. Read each statement in your Part, and mark it only if it is true of your case.

If a statement in your Part is not true of your case, do not mark it and do not file until you have advice. An unmarked box is a gap; a marked box that is not true is a false statement under oath.

WHERE IT IS SWORN. Required. The affidavit must be signed before a notary or a clerk. The petitioner signs the affidavit before a notary or a clerk. This is a sworn document and the signature must be witnessed in person.

The whole notarial certificate at the foot of the affidavit - the state, the county, the day, the month, the year, the name of the person who appeared, the identification relied on, the notary's signature, commission expiry and identification number - is completed by the notary or the clerk who takes your oath, at the moment you swear it. None of it is filled in here.

WHAT IT COSTS.

THE HONEST ANSWER IS THAT NO HELD RECORD STATES A FILING FEE FOR THIS MOTION. The committed record for this route says, in terms: "Unresolved. No filing fee for a Chapter 12-1.3 motion is stated in the controlling review or located in the Judiciary materials. Do not quote a price until it is confirmed."

No no figure is printed here. Ask the clerk of the division you are filing in what, if anything, it costs, before you go.

A SEPARATE MONEY QUESTION, WHICH IS NOT THE FILING FEE. Court-imposed and court-related fines, fees, costs, assessments and charges on the underlying case must be satisfied in full - the affidavit asks you to swear to that. The committed record adds that those obligations may be waived or reduced by court order, and that a waiver or reduction satisfies the eligibility condition. If you cannot pay them, that is a question to raise with the court rather than a reason to swear that they are paid.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Rhode Island BCI criminal history record. From: Rhode Island Department of Attorney General, Bureau of Criminal Identification. Request your criminal history from the Attorney General's BCI unit. This is where the BCI number the court form requires comes from, and it is also how you check whether the record has already cleared automatically. LegalEase cannot make this request for you.
- Court docket showing counts, charges and dispositions. From: Clerk of the District, Superior or Family Court where the case occurred. Ask the clerk of the court where the case occurred for the docket, which shows the case number, every count, the charges and the dispositions the form requires.
- Proof that sentence and probation are complete. From: Clerk of the sentencing court, or the probation department. Ask the clerk or the probation department for documentation showing the sentence, including any probation, is complete. The waiting period runs from completion of sentence, not from conviction, and probation can push that date years out.
- Proof that financial obligations are paid, waived or reduced by court order. From: Clerk of the sentencing court. Ask the clerk for a record showing fines, fees, costs, assessments and restitution are satisfied, or the court order waiving or reducing them.
- The deferral agreement and the order showing completion of the deferred sentence. From: Clerk of the court that entered the deferred sentence. Ask the clerk for the deferral agreement and the final order. Any participant who says 'it was deferred so it went away' needs the final order checked, because a deferred sentence is not an automatic expungement.

THE WAITING PERIOD AND THE LOOKBACK, AS THE COMMITTED RECORD STATES THEM.

- Completion of the deferred sentence and compliance with all terms of the deferral agreement: none beyond completion; eligibility for consideration is immediate on the court's compliance finding

THE HEARING, AND THE PAGE YOU MUST NOT LEAVE AT HOME.

Page 1 of the court's form, instruction 7, says: "Bring the Order for Expungement or Sealing of Record to the hearing." Rhode Island publishes no template for that order, so this packet contains one composed for you. It is NOT an official Rhode Island form, it says so on its own face, and the court may sign it, change it, refuse it or use an order of its own. Everything on it that is the court's - the findings, whether the motion is granted or denied, any terms the court sets, the signature, the date of entry, the certification - is blank, because none of that is yours or ours to write.

A DISAGREEMENT ON THE COURT'S OWN FORM. READ THIS BEFORE YOU SWEAR TO ANYTHING.

THE RELIEF BULLET THIS PACKET MARKS SAYS "CONVICTION", AND YOUR ROUTE IS A DEFERRED SENTENCE. The Superior Court motion page offers exactly two forms of relief. The second - the one this packet marks - asks that "all records and records of conviction relating to the conviction of the above-referenced case be expunged ... pursuant to G.L. 1956 Sec. 12-1.3-3(c) or (e)". It is marked because it is the only one of the two that cites Chapter 12-1.3, which is the chapter your route runs on through Sec. 12-1.3-2(e); the other bullet is the Sec. 12-1-12 destruction-of-identification-records relief. No held record in this repository states which bullet a Rhode Island Superior Court expects on a deferred-sentence motion, and whether a completed deferred sentence is a "conviction" for this chapter is a question of Rhode Island law that this packet does not answer. It is a mark on YOUR motion: ask the clerk of the division you are filing in, and change it before you file if that division says otherwise.

WHO IS EXCLUDED FROM THIS ROUTE, IN THE COMMITTED RECORD'S OWN WORDS.

- Any person convicted of a crime of violence, who may not have deferred-sentence records expunged.
- Any deferral where the terms are not complete, including unpaid fines, fees, costs, assessments or restitution.
- Any pending criminal proceeding.
- Federal, out-of-state, military and tribal records.

WHEN TO STOP AND GET HELP INSTEAD.

The committed track registry records these as the points where self-help ends, in its own words:

- Any crime of violence, which bars conviction expungement outright.
- Any prior conviction or prior probation, which defeats first-offender status.
- Any arrest during the lookback period, even without a conviction.
- Unpaid or unclear court financial obligations.
- Any pending criminal proceeding.
- The good moral character and rehabilitation showing, which is the court's finding and not a fact LegalEase can supply.
- Immigration exposure. Rhode Island expungement does not resolve immigration consequences.
- Any goal involving law enforcement employment, bar admission or bar character and fitness, a teaching certificate, a coaching certificate, or early childhood education work, where disclosure survives expungement.
- Federal, out-of-state, military and tribal records, which Rhode Island relief does not reach.
- Unclear deferred-sentence completion status.
- Unpaid restitution or assessments under the deferral agreement.
- Any participant who assumes a deferred sentence already cleared the record.

WHAT THIS PACKET IS NOT. It is the state's own motion and affidavit, a proposed order composed for the hearing because the state publishes none, and instructions. It is not legal advice, it is not filed for you, and it does not decide whether you are eligible.

Route: obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-1-bci-and-docket ;

obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-2-court-motion-and-affidavit ;

obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-3-notice-hearing-and-certified-copies

CERTIFIED COPIES OF THE ORDER - WHAT TO DELIVER, AND TO WHOM

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

This page is guidance. It is not a filing and there is nothing here to hand to a clerk.

WHAT HAPPENS AFTER THE COURT GRANTS THE MOTION - AND THE PART THAT IS YOURS TO DO.

The court's own form says it, on page 1, instruction 8: "If your motion is granted, all financial obligations owed (fines, fees, costs, restitution, and assessments) must be paid in full to complete the expungement process. Upon all conditions being satisfied, the clerk's office will prepare three (3) certified copies of the order. One (1) copy is for your records, one (1) copy is for the Office of the Attorney General's Bureau of Criminal Identification Unit (BCI), and one (1) copy is for the police department that charged the case. You are responsible for delivering the copies to these agencies."

So, in order:

1. PAY EVERYTHING OFF. Fines, fees, costs, restitution and assessments must be paid in full before the expungement is complete. A granted motion with an unpaid balance is not a finished expungement.
2. ASK THE CLERK'S OFFICE FOR THE THREE CERTIFIED COPIES. The clerk's office prepares them once every condition is satisfied. Certified copies are the clerk's to make; do not photocopy the order yourself and expect it to be accepted.
3. KEEP ONE COPY.
4. DELIVER ONE COPY to the Office of the Attorney General's Bureau of Criminal Identification Unit.
5. DELIVER ONE COPY to the police department that charged the case.
6. THE DELIVERY IS YOURS, NOT THE COURT'S. The form says you are responsible for delivering the copies. Until they arrive, those records are not expunged, whatever the order says.

Keep proof of what you delivered and when.

Nothing on this checklist can be done before the court grants the motion, and none of it is done by the court for you.

Route: obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-1-bci-and-docket ;
obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-2-court-motion-and-affidavit ;
obligation:unit:RI:ri_deferred_sentence:ri-deferred-sentence-stage-3-notice-hearing-and-certified-copies